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General tenancy agreement (Form 18a)

Residential Tenancies and Rooming Accommodation Act 2008

rta residential tenancies authority

Part 1 Tenancy information

Item 1

1.1 Lessor

Name/trading name: Sample Property Holdings Pty Ltd

Address

Postcode

1.2 Phone | Mobile | ABN (optional)

Email

Note – Item 1.2 is optional.

Item 2

2.1 Tenant/s

1. Full name/s	Alex Example		
Phone		Email	
Emergency contact full name/s			
Emergency contact phone			
Emergency contact email			

2. Full name/s			
Phone		Email	
Emergency contact full name/s			
Emergency contact phone			
Emergency contact email			

3. Full name/s			
Phone		Email	
Emergency contact full name/s			
Emergency contact phone			
Emergency contact email			

2.2 Address for service (if different from address of the premises in item 5.1) Attach a separate list

Item 2.2 is optional. See clause 48(4).

Item 3

3.1 Lessor's agent If applicable.

Full name/trading name

Address

Postcode

3.2 Phone | Mobile | ABN (optional)

Email

Note – Item 3.2 is optional.

CC BY

Item 4 Notices may be given to
(Indicate if the email is different from item 1, 2 or 3 above)

4.1 Lessor

Email Yes ☐ No ☐

Text message Yes ☐ No ☐ Facsimile Yes ☐ No ☐

4.2 Tenant/s

Email Yes ☐ No ☐

Text message Yes ☐ No ☐ Facsimile Yes ☐ No ☐

4.3 Agent

Email Yes ☐ No ☐

Text message Yes ☐ No ☐ Facsimile Yes ☐ No ☐

Item 5 **5.1** Address of the rental premises

1 Example Street

Southport QLD Postcode 4215

5.2 Inclusions provided. For example, furniture or other household goods let with the premises. Attach list if necessary

5.3 Details of current repair orders for the rental premises or inclusions

Item 6 **6.1** The term of the agreement is ☐ fixed term agreement ☐ periodic agreement

6.2 Starting on

See clause 4(2)

6.3 Ending on

Fixed term agreements only. For continuation of tenancy agreement, see clause 6

Item 7 Rent $ 1300 ☐ weekly ☐ fortnightly ☐ monthly See clause 8(1)

Item 8 Rent must be paid on the day of each fortnight

Insert day. See clause 8(2)

Insert week, fortnight or month

Item 9 Methods of rent payment Insert the ways the rent must be paid. See clause 8(3)(a)

Method 1	
Method 2	

Details for direct credit

BSB no. Bank/building society/credit union

Account no. Account name

Payment reference

Item 10 **Place of rent payment** Insert where the rent must be paid. Item 10 is optional. See clause 8(6) to (8)

Item 11 **Day of last rent increase** Insert the day the rent was last increased for the premises

Note: The lessor/lessor's agent must not increase, or propose to increase, the rent payable by a tenant less than 12 months after the last rent increase for the residential premises. Rent increase requirements do not apply to exempt lessors. The Act provides definitions for an exempt lessor.

Item 12 **Rental bond amount** $ 3900 See clause 13

Item 13 **13.1 The services supplied to the premises for which the tenant must pay** See clause 16

Electricity ☐ Yes ☐ No

Gas ☐ Yes ☐ No

Phone ☐ Yes ☐ No

Any other service that a tenant must pay ☐ Yes ☐ No

Type See special terms (page 12)

13.2 Is the tenant to pay for water supplied to the premises See clause 17

☐ Yes ☐ No

Item 14 **If the premises is not individually metered for a service under item 13.1, the apportionment of the cost of the service for which the tenant must pay.**

For example, insert the percentage of the total charge the tenant must pay. See clause 16(c)

Electricity

Gas

Phone

Any other service stated in item 13.1
See special terms (page 12)

Item 15 **How services must be paid for** Insert for each how the tenant must pay. See clause 16(d)

Electricity

Gas

Phone

Any other service stated in item 13.1
See special terms (page 12)

Item 16 **Number of persons allowed to reside at the premises** See clause 22

Item 17 **17.1 Are there any body corporate by-laws applicable to the occupation of the premises by a tenant?** ☐ Yes ☐ No

17.2 Has the tenant been given a copy of the relevant by-laws See clause 23 ☐ Yes ☐ No

Item 18 **18.1 Name and telephone number of the lessor's nominated repairer for each of the following repairs**

Electrical repairs Phone

Plumbing repairs Phone

Other repairs Phone

18.2 Are the nominated repairers the tenant's first point of contact for notifying the need for emergency repairs? See clause 31(4)

☐ Yes

☐ No – please provide lessor contact details below

Name Phone

Item 19 **The type and number of pets approved by the lessor to be kept at the premises** See clauses 34 to 37

Type Number Type Number

For more information on what is defined as a pet and working dog visit the RTA's Renting with pets webpage.

Part 2 Standard Terms

Division 1 Preliminary

1 Interpretation

In this agreement –

(a) a reference to ***the premises*** includes a reference to any inclusions for the premises stated in item 5.2; and

(b) a reference to a numbered section is a reference to the section in the *Residential Tenancies and Rooming Accommodation Act 2008* (***the Act***) with that number; and

(c) a reference to a numbered item is a reference to the item with that number in part 1 of this agreement; and

(d) a reference to a numbered clause is a reference to the clause of this agreement with that number.

2 Terms of a general tenancy agreement – ss 52 and 54–56

(1) This part states, under section 55, the standard terms of a general tenancy agreement.

(2) The Act also imposes duties on, and gives entitlements to, the lessor and tenant that are taken to be included as terms of this agreement.

(3) The lessor and tenant may agree on other terms of this agreement (***special terms***).

(4) A duty or entitlement under the Act overrides a standard term or special term if the term is inconsistent with the duty or entitlement.

(5) A standard term overrides a special term if they are inconsistent.

(6) Any body corporate by-laws that apply to the occupation of the premises by the tenant, for the time being in force, are taken to be terms of this agreement.

(7) A breach of this agreement may also be an offence under the Act.

Examples for subclause (7) –

1 It is an offence for the lessor or lessor's agent to enter the premises in contravention of the rules of entry under sections 192 to 199.

2 It is an offence if the tenant does not sign and return the condition report to the lessor or lessor's agent under section 65.

3 More than 1 lessor or tenant

(1) This clause applies if more than 1 person is named in item 1 or 2.

(2) Each lessor named in item 1 must perform all of the lessor's obligations under this agreement.

(3) Each tenant named in item 2 –

(a) holds their interest in the tenancy –

(i) if a special term states the tenants are joint tenants—as a joint tenant; or

(ii) otherwise—as a tenant in common; and

(b) must perform all the tenant's obligations under this agreement.

Division 2 Entering tenancy

4 Start of tenancy

(1) The tenancy starts on the day stated in item 6.2.

(2) However, if no day is stated or if the stated day is before the signing of this agreement, the tenancy starts when the tenant is or was given a right to occupy the premises.

5 Entry condition report – s 65

(1) The lessor or lessor's agent must prepare, in the approved form, and sign a condition report for the premises.

(2) A copy of the condition report must be given to the tenant on or before the day the tenant occupies the premises under this agreement.

(3) If the tenant does not agree with the condition report, the tenant must mark the copy of the report in an appropriate way to show the parts the tenant disagrees with.

(4) The tenant must sign and return the copy of the condition report to the lessor or lessor's agent no later than 7 days after the later of the following days –

(a) the day the tenant occupies the premises;

(b) the day the tenant is given the copy of the condition report.

(5) After the copy of the condition report is returned to the lessor or lessor's agent by the tenant, the lessor or lessor's agent must make a copy of the condition report and return it to the tenant within 14 days.

(6) However, the lessor or lessor's agent does not have to prepare a condition report for the premises if –

(a) this agreement has the effect of continuing the tenant's right to occupy the premises under an earlier residential tenancy agreement; and

(b) in accordance with the Act, a condition report was prepared for the premises for the earlier residential tenancy agreement.

(7) If a condition report is not prepared for this agreement because subclause (6) applies, the condition report prepared for the earlier residential tenancy agreement is taken to be the condition report for this agreement.

6 Continuation of fixed term agreement – s 70

(1) This clause applies if –

(a) this agreement is a fixed term agreement; and

(b) none of the following notices are given, or agreements or applications made, before the day the term ends (the ***end day***) –

(i) a notice to leave;

(ii) a notice of intention to leave;

(iii) an abandonment termination notice;

(iv) a notice, agreement or application relating to the death of a sole tenant under section 324A;

(v) a separate written agreement between the lessor and tenant under section 277(a) to end this agreement.

(2) This agreement, other than a term about this agreement's term, continues to apply after the end day on the basis that the tenant is holding over under a periodic agreement.

Note – For more information about certain notices, see the information statement.

7 Costs apply to early ending of fixed term agreement – s 357A

(1) This clause applies if –

(a) this agreement is a fixed term agreement; and

(b) the tenant ends this agreement before the term ends other than in a way permitted under the Act.

(2) The tenant must pay the reletting costs under section 357A(3).

Note – For when the tenant may end this agreement early, under the Act, see clause 40 and the information statement.

(3) This clause does not apply if, after experiencing domestic violence, the tenant ends the tenant's interest in this agreement under chapter 5, part 1, division 3, subdivision 2A of the Act.

For more information visit the Domestic violence in a rental property webpage on the RTA website.

Division 3 Rent

8 When, how and where rent must be paid – ss 83 – 85

(1) The tenant must pay the rent stated in item 7.
(2) The rent must be paid on the days stated in item 8.
(3) The rent must be paid –
  (a) in a way stated in item 9; or
  Note – Under section 83, at least 2 ways for the tenant to pay the rent must be stated in this agreement.
  (b) in a way agreed after the signing of this agreement by –
    (i) the lessor or tenant giving the other party a notice proposing a way; and
    (ii) the other party agreeing to the proposal in writing; or
  (c) if the lessor or lessor's agent intends to change the way rent is paid to a way that is not stated in item 9 and no way is agreed to after the signing of this agreement – in a way the lessor or lessor's agent proposes by notice to the tenant under section 84A.
(4) The lessor or lessor's agent must give the tenant a notice advising of the costs associated with the ways to pay rent offered to the tenant that the tenant would not reasonably be aware of if the lessor or lessor's agent knows or could reasonably be expected to find out about the costs.
(5) Also, the lessor or lessor's agent must declare any financial benefit the lessor or lessor's agent may receive if the tenant uses a particular way to pay rent.
(6) If a place is stated in item 10, the rent must be paid at the place.
(7) If, after the signing of this agreement, the lessor gives a notice to the tenant stating a place, or a different place, for payment of rent and the place is reasonable, the rent must be paid at the place while the notice is in force.
(8) If no place is stated in item 10 and there is no notice stating a place, the rent must be paid at an appropriate place.
  Examples of an appropriate place –
  - the lessor's address for service
  - the office of the lessor's agent

9 Rent in advance – s 87

The lessor or lessor's agent may require the tenant to pay rent in advance only if the payment is not more than –
(a) for a periodic agreement – 2 weeks rent; or
(b) for a fixed term agreement – 1 month rent.
Note – Under section 87(2), the lessor or the lessor's agent must not require payment of rent under this agreement in a period for which rent has already been paid.

10 Rent increases – ss 91 and 93

(1) If the lessor proposes to increase the rent, the lessor must give notice of the proposal to the tenant.
(2) The notice must state –
  (a) the amount of the increased rent; and
  (b) the day from when the rent is payable; and
  (c) the day the rent was last increased for the premises.
(3) The day from when the increased rent is payable must not be earlier than the later of the following –
  (a) 2 months after the day the notice is given;
  (b) 12 months after the last rent increase for the premises in accordance with section 93.
(4) Subject to an order of a tribunal, the increased rent is payable from the day stated in the notice, and this agreement is taken to be amended accordingly.
(5) However, the increased rent is payable by the tenant only if –
  (a) the rent is increased in compliance with this clause and the Act; and
  (b) the increased rent is not payable earlier than 12 months after the last rent increase for the premises in accordance with section 93; and
  (c) the increase in rent does not relate to –
    (i) compliance of the premises with the prescribed minimum housing standards; or
    (ii) keeping a pet or working dog at the premises.
(6) Also, if this agreement is a fixed term agreement, the rent may not be increased before the term ends unless –
  (a) this agreement provides for the rent increase; and
  (b) this agreement states the amount of the increase or how the amount of the increase is to be worked out; and
  (c) the increase is made in compliance with the matters mentioned in paragraph (b).

11 Application to tribunal about rent increase – s 92

(1) After the lessor gives the tenant notice of a proposed rent increase, the tenant may apply to the tribunal for an order reducing or setting aside the amount of the proposed increase if the tenant believes the increase –
  (a) is excessive; or
  (b) is not payable under clause 10.
(2) However, the application must be made –
  (a) within 30 days after the tenant receives the notice; and
  (b) if this agreement is a fixed term agreement – before the term of this agreement ends.

12 Rent decreases – s 94

Under section 94, the rent may decrease in certain situations.
Note – For information about the situations, see the information statement.

Division 4 Rental bond

13 Rental bond required – ss 111 and 116

(1) If a rental bond is stated in item 12, the tenant must pay to the lessor or the lessor's agent the bond –
  (a) if a special term requires the bond to be paid at a stated time – at the stated time; or
  (b) if a special term requires the bond to be paid by instalments – by instalments; or
  (c) otherwise – when the tenant signs this agreement.
  Note – There is a maximum rental bond that may be required. See sections 112(1) and 146 and the information statement.
(2) The lessor or the lessor's agent must, within 10 days of receiving the rental bond or a part of the bond, pay it to the authority and give the authority a notice, in the approved form, about the bond.
(3) The rental bond is intended to be available to financially protect the lessor if the tenant breaches this agreement.
  Example – The lessor may claim against the rental bond if the tenant does not leave the premises in the required condition at the end of the tenancy.
  Note – For how to apply to the authority or a tribunal for the rental bond at the end of the tenancy, see sections 125 to 141 and the information statement.

14 Increase in rental bond – s 154

(1) The tenant must increase the rental bond if –
  (a) the rent increases and the lessor gives notice to the tenant to increase the bond; and
  (b) the notice is given at least 11 months after –
    (i) this agreement started; or
    (ii) if the bond has been increased previously, following a notice given under this clause – the day stated in the notice, or the last notice, for making the increase.
(2) The notice must state the increased amount and the day by which the increase must be made.
(3) For subclause (2), the day must be at least 1 month after the notice is given to the tenant.

Division 5 Outgoings

15 Outgoings – s 163

(1) The lessor must pay all charges, levies, premiums, rates or taxes for the premises, other than a service charge for the premises.

Examples –
body corporate levies, council general rates, sewerage charges, environment levies, land tax

(2) This clause does not apply if –
(a) the lessor is the State; and
(b) rent is not payable under the agreement; and
(c) the tenant is an entity receiving financial or other assistance from the State to supply rented accommodation to persons.

16 General service charges – ss 164 and 165

The tenant must pay a service charge, other than a water service charge, for a service supplied to the premises during the tenancy if –
(a) the tenant enjoys or shares the benefit of the service; and
(b) the service is stated in item 13.1; and
(c) either –
(i) the premises are individually metered for the service; or
(ii) Item 14 states how the tenant's apportionment of the cost of the service is to be worked out; and
(d) item 15 states how the charge may be recovered by the lessor from the tenant.

Note – Section 165(3) limits the amount the tenant must pay.

17 Water service charges – ss 164, 166 and 166A

(1) The tenant must pay an amount for the water consumption charges for the premises if –
(a) the tenant is enjoying or sharing the benefit of a water service to the premises; and
(b) the premises are individually metered for the supply of water or water is supplied to the premises by delivery by means of a vehicle; and
(c) Item 13.2 states that the tenant must pay for water supplied to the premises.

(2) However, the tenant does not have to pay an amount –
(a) that is more than the amount of the water consumption charges payable to the relevant water supplier; or
(b) that is a fixed charge for the water service to the premises.

(3) Also, the tenant does not have to pay an amount for a reasonable quantity of water supplied to the premises for a period if, during the period, the premises are not water efficient for section 166.

(4) In deciding what is a reasonable quantity of water for subclause (3), regard must be had to the matters mentioned in section 169(4)(a) to (e).

(5) The lessor must give the tenant copies of water consumption charges documents within 4 weeks after the lessor receives the documents.

(6) The tenant must pay the amount of the water consumption charge to the lessor within 4 weeks after the lessor gives the tenant copies of the water consumption charges documents about the incurring of the amount.

(7) The tenant is not required to pay an amount for the water consumption charges if the tenant has not received a copy of the water consumption charges document about the amount payable to the relevant water supplier.

(8) Subclause (9) applies if water consumption charges are payable for a period that includes part but not all of a period specified, or to be specified, in a water consumption charges document.

(9) The tenant may be required to pay an amount calculated for a partial billing under section 166A using –
(a) a meter reading for the premises recorded in a condition report; and
(b) a reasonable estimate of the volume of water supplied to the premises during the period for which water consumption charges are payable by the tenant; and
(c) the rate used to calculate the water consumption charge stated in the most recent water consumption charges document.

(10) In this clause –

water consumption charge, for premises, means the variable part of a water service charge assessed on the volume of water supplied to the premises.

Note – If there is a dispute about how much water (or any other service charge) the tenant should pay, the lessor or the tenant may attempt to resolve the dispute by conciliation.

water consumption charges document means a document, issued to the lessor by the relevant water supplier, stating the amount of water consumption charges for the premises that are payable to the supplier.

Division 6 Rights and obligations during tenancy

Subdivision 1 Occupation and use of premises

18 No legal impediments to occupation – s 181

The lessor must ensure there is no legal impediment to occupation of the premises by the tenant as a residence for the term of the tenancy if, when entering into this agreement, the lessor knew about the impediment or ought reasonably to have known about it.

Examples of possible legal impediments –
- if there is a mortgage over the premises, the lessor might need to obtain approval from the mortgagee before the tenancy can start
- a certificate might be required under the *Building Act 1975* before the premises can lawfully be occupied
- the zoning of the land might prevent use of a building on the land as a residence.

19 Vacant possession and quiet enjoyment – ss 182 and 183

(1) The lessor must ensure the tenant has vacant possession of the premises (other than a part of the premises that the tenant does not have a right to occupy exclusively) on the day the tenant is entitled to occupy the premises under this agreement.

Note – Parts of the premises where the tenant does not have a right to occupy exclusively may be identified in a special term.

(2) The lessor must take reasonable steps to ensure the tenant has quiet enjoyment of the premises.

(3) The lessor or the lessor's agent must not interfere with the reasonable peace, comfort or privacy of the tenant in using the premises.

20 Lessor's right to enter the premises – ss 192–199

The lessor or the lessor's agent may enter the premises during the tenancy only if the obligations under sections 192 to 199 have been complied with.

21 Tenant's use of premises – ss 10 and 184

(1) The tenant may use the premises –
  (a) only as a place of residence; or
  (b) mainly as a place of residence and for another use allowed under a special term.

(2) The tenant must not –
  (a) use the premises for an illegal purpose; or
  (b) cause a nuisance by the use of the premises; or
    Examples of things that may constitute a nuisance –
    - using paints or chemicals on the premises that go onto or cause odours on adjoining land
    - making loud noises
    - allowing large amounts of water to escape onto adjoining land
  (c) interfere with the reasonable peace, comfort or privacy of a neighbour of the tenant; or
  (d) allow another person on the premises to interfere with the reasonable peace, comfort or privacy of a neighbour of the tenant.

22 Number of occupants allowed

No more than the number of persons stated in item 16 may reside at the premises.

23 Body corporate by-laws– s 69

(1) The lessor must give the tenant a copy of any body corporate by-laws applicable to –
  (a) the occupation of the premises; or
  (b) any common area available for use by the tenant with the premises.

(2) The tenant must comply with the body corporate by-laws.

(3) Subclause (1) does not apply if –
  (a) this agreement has the effect of continuing the tenant's right to occupy the premises under an earlier residential tenancy agreement; and
  (b) the lessor gave the tenant a copy of the body corporate by-laws in relation to the earlier agreement.

Subdivision 2 Standard of premises

24 Lessor's obligations – s 185

(1) At the start of the tenancy, the lessor must ensure –
  (a) the premises are clean; and
  (b) the premises are fit for the tenant to live in; and
  (c) the premises are in good repair; and
  (d) the lessor is not in breach of a law dealing with issues about the health or safety of persons using or entering the premises; and
  (e) the premises otherwise comply with any prescribed minimum housing standards applying to the premises.

(2) While the tenancy continues, the lessor must –
  (a) maintain the premises in a way that the premises remain fit for the tenant to live in; and
  (b) maintain the premises in good repair; and
  (c) ensure any law dealing with issues about the health or safety of persons using or entering the premises is complied with; and
  (d) keep any common area included in the premises clean; and
  (e) ensure the premises otherwise comply with any prescribed minimum housing standards applying to the premises.

(3) However, the lessor is not required to comply with subclause (1)(c) or (2)(a) for any non-standard items and the lessor is not responsible for their maintenance if –
  (a) the lessor is the State; and
  (b) the non-standard items are stated in this agreement and this agreement states the lessor is not responsible for their maintenance; and
  (c) the non-standard items are not necessary and reasonable to make the premises a fit place in which to live; and
  (d) the non-standard items are not a risk to health or safety; and
  (e) for fixtures – the fixtures were not attached to the premises by the lessor.

(4) In this clause –
  non-standard items means the fixtures attached to the premises and inclusions supplied with the premises stated in this agreement for item 5.2.
  premises include any common area available for use by the tenant with the premises.

25 Tenant's obligations generally – s188

(1) The tenant must keep the premises clean, having regard to their condition at the start of the tenancy.

(2) The tenant must not maliciously damage, or allow someone else to maliciously damage, the premises.

(3) The tenant's obligations under this clause do not apply to the extent the obligations would have the effect of requiring the tenant to repair, or compensate the lessor for, damage to the premises caused by an act of domestic violence experienced by the tenant.

  For more information visit the Domestic violence in a rental property webpage on the RTA website.

Subdivision 3 The dwelling

26 Fixtures or structural changes – ss 207–209

(1) The tenant may attach a fixture, or make a structural change, to the premises only if –
  (a) the tenant gives the lessor a request, in the approved form, for approval to attach the fixture or make the structural change; and
  (b) the lessor agrees to the request; and
  (c) for body corporate premises—the body corporate agrees to the request; and
  (d) the fixture is attached, or structural change is made, in accordance with the lessor's agreement.

  Note – Fixtures are generally items permanently attached to land or to a building that are intended to become part of the land or building. Attaching a fixture may include, for example, gluing, nailing or screwing the fixture to a wall.

(2) The lessor must –
  (a) decide the request –
    (i) within 28 days after receiving the request; or
    (ii) if the premises are not body corporate premises—within a longer period, if agreed to by the tenant and lessor; and
  (b) advise the tenant of the lessor's decision; and
  (c) if the lessor agrees to the request and the premises are body corporate premises –
    (i) state that the lessor's agreement is subject to the agreement by the body corporate; and
    (ii) give the request to the body corporate within 28 days after receiving the request; and
    (iii) advise the tenant as soon as reasonably practicable of the body corporate's decision about the request.

(3) If the lessor agrees to the request, the lessor must give the tenant an agreement that –
  (a) is in writing; and
  (b) describes the nature of the fixture or structural change; and
  (c) states any conditions of the agreement, including any conditions given by the body corporate.

  Examples of conditions –
  - that the tenant must maintain the fixture in a particular way
  - that the tenant must remove the fixture and must repair damage caused by removing the fixture
  - that the lessor must compensate the tenant for the fixture if the tenant can not remove it

(4) The tenant must comply with any conditions of the agreement given by the lessor or body corporate.

(5) In this clause –
body corporate premises means premises –
(a) that are part of a body corporate scheme; and
(b) for which, under a body corporate law or body corporate by-law, the approval of the body corporate is required for the attachment of a fixture, or the making of a structural change, to the premises.

27 Action by lessor for breach of lessor's agreement about fixture or structural change – s 209A

(1) This clause applies if –
(a) the tenant attaches a fixture, or makes a structural change, to the premises; and
(b) the lessor's agreement is given under section 208 to attach the fixture or make the structural change; and
(c) the tenant does not attach the fixture, or make the structural change, in accordance with the lessor's agreement.
(2) The lessor may –
(a) take action for a breach of a term of this agreement; or
(b) waive the breach and treat the fixture or structural change as an improvement to the premises for the lessor's benefit.

28 Supply of locks and keys – s 210

(1) The lessor must supply and maintain all locks necessary to ensure the premises are reasonably secure.
(2) The lessor must give the tenant, or if there is more than 1 tenant, give 1 of the tenants, a key for each lock that –
(a) secures an entry to the premises; or
(b) secures a road or other place normally used to gain access to, or leave, the area or building in which the premises are situated; or
(c) is part of the premises.
(3) If there is more than 1 tenant, the lessor must give the other tenants a key for the locks mentioned in subclause (2)(a) and (b).

29 Changing locks – ss 211 and 212

(1) The lessor or tenant may change a lock at the premises only if –
(a) the other party to this agreement agrees to the change; or
(b) the lessor or tenant has a reasonable excuse for making the change; or
(c) the lessor or tenant believes the change is necessary because of an emergency; or
(d) the lock is changed to comply with an order of the tribunal.
(2) However, the tenant may also change a lock at the premises if the tenant –
(a) believes the change is necessary to protect the tenant or another occupant of the premises from domestic violence; and
For more information visit the Domestic violence in a rental property webpage on the RTA website.
(b) engages a locksmith or other qualified tradesperson to change the lock.
(3) The lessor or tenant must not act unreasonably in failing to agree to the change of a lock.
(4) If the lessor or tenant changes a lock, the lessor or tenant must give the other party to this agreement a key for the changed lock, unless –
(a) the other party agrees to not being given the key; or
(b) the tribunal orders that the key not be given to the other party.
(5) If the tenant changes a lock under subclause (2) and gives the lessor a key for the changed lock, the lessor must not give the key to any other person without the tenant's agreement or a reasonable excuse.
(6) The right of the lessor or tenant to change a lock under this clause is subject to a body corporate law or a body corporate by-law that applies to the premises.

Subdivision 4 Damage and repairs

30 Meaning of emergency and routine repairs – ss 214 and 215

(1) ***Emergency repairs*** are works needed to repair any of the following –
(a) a burst water service or serious water service leak;
(b) a blocked or broken lavatory system;
(c) a serious roof leak;
(d) a gas leak;
(e) a dangerous electrical fault;
(f) flooding or serious flood damage;
(g) serious storm, fire or impact damage;
(h) a failure or breakdown of the gas, electricity or water supply to the premises;
(i) a failure or breakdown of an essential service or appliance on the premises for hot water, cooking or heating;
(j) a fault or damage that makes the premises unsafe or insecure;
(k) a fault or damage likely to injure a person, damage property or unduly inconvenience a tenant of the premises;
(l) a serious fault in a staircase, lift or other common area of the premises that unduly inconveniences a tenant in gaining access to, or using, the premises.
(2) Also, ***emergency repairs*** are works needed for the premises to comply with the prescribed minimum housing standards.
(3) ***Routine repairs*** are repairs other than emergency repairs.

31 Nominated repairer for emergency repairs – s 216

(1) The lessor's nominated repairer for emergency repairs of a particular type must be stated either –
(a) in item 18; or
(b) in a notice given by the lessor to the tenant.
(2) The notice must state –
(a) the name and telephone number of the nominated repairer; and
(b) whether or not the nominated repairer is the tenant's first point of contact for notifying of the need for emergency repairs.
(3) The lessor must give notice to the tenant of any change of the lessor's nominated repairer or the telephone number of the nominated repairer.
(4) This clause does not apply if –
(a) the lessor has given the tenant a telephone number of the lessor; and
(b) the lessor gives notice to the tenant that the lessor is to arrange for emergency repairs to be made to the premises.

32 Notice of damage – s 217

(1) If the tenant knows the premises have been damaged, the tenant must give notice as soon as practicable of the damage.
(2) If the premises need routine repairs, the notice must be given to the lessor.
(3) If the premises need emergency repairs, the notice must be given to the lessor if –
(a) there is no nominated repairer for the repairs; or
(b) a nominated repairer for the repairs is not the tenant's first point of contact; or
(c) a nominated repairer for the repairs is the tenant's first point of contact but the tenant has been unable to contact the repairer after making reasonable efforts.
(4) If the premises need emergency repairs and there is a nominated repairer of the lessor for the repairs, the notice must be given to the repairer if –
(a) the repairer is the tenant's first point of contact; or
(b) the repairer is not the tenant's first point of contact but the tenant has been unable to contact the lessor after making reasonable efforts.
(5) Despite clause 48, a notice under this clause does not need to be written.

(6) This clause does not apply to the tenant for damage caused by an act of domestic violence experienced by the tenant.
For more information visit the Domestic violence in a rental property webpage on the RTA website.

33 Emergency repairs arranged by tenant – ss 218 and 219

(1) The tenant may arrange for a suitably qualified person to make emergency repairs of the premises or apply to the tribunal under section 221 for orders about the repairs if –
(a) the tenant has been unable to notify the lessor or nominated repairer of the need for the repairs; or
(b) the repairs are not made within a reasonable time after notice is given.
Note – Section 219A also provides that the lessor's agent may arrange for emergency repairs.

(2) The maximum amount that may be incurred for emergency repairs arranged to be made by the tenant is an amount equal to the amount payable under this agreement for 4 weeks rent.
Note – For how the tenant may require reimbursement for the repairs, see sections 219(2) and (3) and 220 and the information statement.

Subdivision 5 Pets

34 Keeping pets and other animals at premises – ss 184B and 184G

(1) The tenant may keep a pet or other animal at the premises only with the approval of the lessor.

(2) However, the tenant may keep a working dog at the premises without the lessor's approval.

(3) The tenant has the approval of the lessor to keep a pet at the premises if keeping the pet at the premises is consistent with item 19.
Notes –
1 If item 19 states 2 cats, the tenant is approved by the lessor to keep up to 2 cats at the premises.
2 For additional approvals to keep a pet at the premises see clause 36.

(4) An authorisation to keep the pet or working dog at the premises continues for the life of the pet or working dog and is not affected by any of the following matters –
(a) the ending of this agreement, if the tenant continues occupying the premises under a new agreement;
(b) a change in the lessor or lessor's agent;
(c) for a working dog – the retirement of the dog from the service the dog provided as a working dog.

(5) An authorisation to keep a pet, working dog or other animal at the premises may be restricted by a body corporate by-law or other law about keeping animals at the premises.
Examples –
1 The premises may be subject to a local law that limits the number or types of animals that may be kept at the premises.
2 The premises may be subject to a body corporate by-law that requires the tenant to obtain approval from the body corporate before keeping a pet at the premises.

35 Tenant responsible for pets and other animals – s 184C

(1) The tenant is responsible for all nuisance caused by a pet or other animal kept at the premises, including, for example, noise caused by the pet or other animal.

(2) The tenant is responsible for repairing any damage to the premises caused by the pet or other animal.

(3) Damage to the premises caused by the pet or other animal is not fair wear and tear.

36 Request for approval to keep pet – ss 184D and 184E

(1) The tenant may, using the approved form, request the lessor's approval to keep a stated pet at the premises.

(2) The lessor must respond to the tenant's request within 14 days after receiving the request.

(3) The lessor's response to the request must be in writing and state –
(a) whether the lessor approves or refuses the tenant's request; and
(b) if the lessor approves the tenant's request subject to conditions – the conditions of the approval; and
Note – See clause 37 for limitations on conditions of approval to keep a pet at the premises.
(c) if the lessor refuses the tenant's request –
(i) the grounds for the refusal; and
(ii) the reasons the lessor believes the grounds for the refusal apply to the request.

(4) The lessor may refuse the request for approval to keep a pet at the premises only on 1 or more of the following grounds –
(a) keeping the pet would exceed a reasonable number of animals being kept at the premises;
(b) the premises are unsuitable for keeping the pet because of a lack of appropriate fencing, open space or another thing necessary to humanely accommodate the pet;
(c) keeping the pet is likely to cause damage to the premises that could not practicably be repaired for a cost that is less than the amount of the rental bond for the premises;
(d) keeping the pet would pose an unacceptable risk to the health and safety of a person, including, for example, because the pet is venomous;
(e) keeping the pet would contravene a law;
(f) keeping the pet would contravene a body corporate by-law applying to the premises;
(g) if the lessor proposed reasonable conditions for approval and the conditions comply with clause 37 – the tenant has not agreed to the conditions;
(h) the animal stated in the request is not a pet as defined in section 184A;
(i) another ground prescribed by a regulation under section 184E(1)(j).

(5) The lessor is taken to approve the keeping of the pet at the premises if –
(a) the lessor does not comply with subclause (2); or
(b) the lessor's response does not comply with subclause (3).

37 Conditions for approval to keep pet at premises – s 184F

(1) The lessor's approval to keep a pet at the premises may be subject to conditions if the conditions –
(a) relate only to keeping the pet at the premises; and
(b) are reasonable having regard to the type of pet and the nature of the premises; and
(c) are stated in the written approval given to the tenant under clause 36(3).

(2) Without limiting subclause (1)(b), the following conditions of the lessor's approval are taken to be reasonable –
(a) if the pet is not a type of pet ordinarily kept inside – a condition requiring the pet to be kept outside at the premises;
(b) if the pet is capable of carrying parasites that could infest the premises – a condition requiring the premises to be professionally fumigated at the end of the tenancy;
(c) if the pet is allowed inside the premises – a condition requiring carpets in the premises to be professionally cleaned at the end of the tenancy.

(3) A condition of the lessor's approval to keep a pet at the premises is void if the condition –
(a) would have the effect of the lessor contravening section 171 or 172; or
(b) would, as a term of this agreement, be void under section 173; or
(c) would increase the rent or rental bond payable by the tenant; or
(d) would require any form of security from the tenant.

(4) For subclause (2), the premises are professionally fumigated, and carpets are professionally cleaned, if the fumigation and cleaning are done to a standard ordinarily achieved by businesses selling those services.

Division 7 Restrictions on transfer or subletting by tenant

38 General – ss 238 and 240

(1) Subject to clause 39, the tenant may transfer all or a part of the tenant's interest under this agreement, or sublet the premises, only if –
(a) the lessor agrees in writing to the transfer or subletting; or
(b) the transfer or subletting is made under an order of the tribunal.

(2) The lessor must act reasonably in failing to agree to the transfer or subletting.

(3) The lessor is taken to act unreasonably in failing to agree to the transfer or subletting if the lessor acts in a capricious or retaliatory way.

(4) The lessor or the lessor's agent must not require the tenant to pay, or accept from the tenant, an amount for the lessor's agreement to a transfer or subletting by the tenant, other than an amount for the reasonable expenses incurred by the lessor in agreeing to the transfer or subletting.

39 State assisted lessors or employees of lessor – s 237

(1) This clause applies if –
(a) the lessor is the State; or
(b) the lessor is an entity receiving assistance from the State to supply rented accommodation; or
(c) the tenant's right to occupy the premises is given under the tenant's terms of employment.

(2) The tenant may transfer the whole or part of the tenant's interest under this agreement, or sublet the premises, only if the lessor agrees in writing to the transfer or subletting.

Division 8 When agreement ends

40 Ending of agreement – s 277

(1) This agreement ends only if –
(a) the lessor and tenant agree, in a separate written document, to end this agreement; or
(b) the lessor gives a notice to leave premises to the tenant under section 326 and the tenant hands over vacant possession of the premises to the lessor on or after the handover day stated in the notice; or
(c) the tenant gives a notice of intention to leave premises to the lessor under section 327 and hands over vacant possession of the premises to the lessor on or after the handover day stated in the notice; or
(d) the tenant vacates, or is removed from, the premises after receiving a notice from a mortgagee or appointed person under section 317; or
(e) the tenant abandons the premises and the period for which the tenant paid rent has ended; or
(f) the tribunal makes an order terminating this agreement.

(2) Also, this agreement ends for a sole tenant if –
(a) the tenant gives the lessor a notice ending tenancy interest and hands over vacant possession of the premises; or
Note – See chapter 5, part 1, division 3, subdivision 2A of the Act for the obligations of the lessor and tenant relating to a notice ending tenancy interest.
(b) the tenant dies.
Note – See section 324A for when this agreement ends if a sole tenant dies.

41 Condition premises must be left in – s 188

(1) At the end of the tenancy, the tenant must leave the premises, as far as possible, in the same condition they were in at the start of the tenancy, fair wear and tear excepted.
Examples of what may be fair wear and tear –
- wear that happens during normal use
- changes that happen with ageing

(2) The tenant's obligation mentioned in subclause (1) does not apply to the extent the obligation would have the effect of requiring the tenant to repair, or compensate the lessor for, damage to the premises caused by an act of domestic violence experienced by the tenant.
For more information visit the Domestic violence in a rental property webpage on the RTA website.

42 Keys

At the end of the tenancy, the tenant must return to the lessor all keys for the premises.

43 Tenant's forwarding address – s 205

(1) When handing over possession of the premises, the tenant must, if the lessor or lessor's agent asks the tenant in writing to state the tenant's new residential address, tell the lessor or lessor's agent the tenant's new residential address.

(2) However, subclause (1) does not apply if –
(a) the tenant has a reasonable excuse for not telling the lessor or lessor's agent the new address; or
(b) after experiencing domestic violence, the tenant ended the tenant's interest in this agreement, under chapter 5, part 1, division 3, subdivision 2A of the Act.
For more information visit the Domestic violence in a rental property webpage on the RTA website.

44 Exit condition report – s 66

(1) The tenant must, on or before the day this agreement ends, prepare and sign a condition report for the premises in the approved form.
Note – For the approved form for the condition report, see the information statement.

(2) As soon as practicable after this agreement ends, the tenant must give 1 copy of the condition report to the lessor or lessor's agent.
Example of what might be as soon as practicable – when the tenant returns the keys to the premises to the lessor or the lessor's agent

(3) The lessor or the lessor's agent must, within 3 business days after receiving the copy of the condition report –
(a) sign the copy; and
(b) if the lessor or lessor's agent does not agree with the report – show the parts of the report the lessor or lessor's agent disagrees with by marking the copy in an appropriate way; and
(c) if the tenant has given a forwarding address to the lessor or lessor's agent – make a copy of the report and return it to the tenant at the address.

(4) The lessor or lessor's agent must keep a copy of the condition report signed by both parties for at least 1 year after this agreement ends.

45 Goods or documents left behind on premises – ss 363 and 364

(1) The tenant must take all of the tenant's belongings from the premises at the end of the tenancy.

(2) The lessor may not treat belongings left behind as the lessor's own property but must deal with them under sections 363 and 364.

Division 9 Miscellaneous

46 Supply of goods and services – s 171

(1) The lessor or the lessor's agent must not require the tenant to buy goods or services from the lessor, the lessor's agent or a person nominated by the lessor or lessor's agent.

(2) Subclause (1) does not apply to –
  (a) a requirement about a service charge; or
  (b) a condition of an approval to keep a pet if the condition –
    (i) requires the carpets to be cleaned, or the premises to be fumigated, at the end of the tenancy; and
    (ii) complies with clause 37; and
    (iii) does not require the tenant to buy cleaning or fumigation services from a particular person or business.

47 Lessor's agent – s 206

(1) The name and address for service of the lessor's agent is stated in item 3.

(2) Unless a special term provides otherwise, the lessor's agent may –
  (a) stand in the lessor's place in any application to the tribunal by the lessor or the tenant; or
  (b) do any thing else the lessor may do, or is required to do, under this agreement.

  Note – See also sections 24 and 25.

48 Notices

(1) A notice under this agreement must be written and, if there is an approved form for the notice, in the approved form.

(2) A notice from the tenant to the lessor may be given to the lessor's agent.

(3) A notice may be given to a relevant party –
  (a) by giving it to the relevant party personally; or
  (b) if an address for service for the relevant party is stated in item 1, 2 or 3 – by leaving it at the address or sending it by prepaid post as a letter to the address; or
  (c) if an electronic address for a type of electronic communication for the relevant party is stated in item 1, 2 or 3 and item 4 indicates that a notice may be given by that type of electronic communication – by sending it by electronic communication to the electronic address in accordance with the *Electronic Transactions (Queensland) Act 2001.*

    Examples of types of electronic communication –
    email, facsimile, text message

(4) If no address for service is stated in item 2 for the tenant, the tenant's address for service is taken to be the address of the premises.

(5) A relevant party may change their address for service or electronic address only by giving notice to each other relevant party of their new address for service or a new electronic address.

(6) On the giving of a notice of a new address for service or new electronic address for a relevant party, the address for service or electronic address stated in the notice is taken to be the relevant party's address for the relevant item in this agreement.

(7) A relevant party may withdraw their consent to notices being given to them by electronic communication, or to a specific electronic address, only by giving notice to each other relevant party that notices are no longer to be given to the relevant party electronically, or to that electronic address.

(8) Unless the contrary is proved –
  (a) a notice left at an address for service is taken to have been received by the person to whom the address relates when the notice was left at the address; and
  (b) a notice sent by post is taken to have been received by the person to whom it was addressed when it would have been delivered in the ordinary course of post; and
  (c) a notice sent by electronic communication to an electronic address is taken to have been received by the recipient –
    (i) if the type of electronic communication is email – when the email enters the recipient's email server; or
    (ii) if the type of electronic communication is facsimile – when the sender's facsimile machine produces a transmission report indicating all pages of the notice have been successfully sent; or
    (iii) otherwise – at the time stated in the *Electronic Transactions (Queensland) Act 2001*, section 24.

(9) In this clause –
  relevant party means –
  (a) the lessor; or
  (b) the tenant; or
  (c) if there is an agent of the lessor – the lessor's agent.

Part 3 Special terms

Insert any special terms here and/or attach a separate list if required. See clause 2(3) to 2(5)

1. The tenant is responsible for all repairs and maintenance of the premises, including the hot water system and the roof.
2. The lessor or agent may enter the premises at any time without notice.
3. The rent will increase by $40 per week every 6 months.
4. The tenant must put the wheelie bins out for collection each week.

The tenant/s must receive a copy of the information statement (Form 17a) and a copy of any applicable by-laws if copies have not previously been given to the tenant/s. **Do not send to the RTA—give this form to the tenant/s, keep a copy for your records.**

Other languages: You can access a free interpreter service by calling the RTA on 1300 366 311 (Monday to Friday, 8:30am to 5:00pm).

Signature of lessor/agent

Name/trading name

Signature

Date

Signature of tenant 1

Print name

Signature

Date

Signature of tenant 2

Print name

Signature

Date

Signature of tenant 3

Print name

Signature

Date